

SYNTHETIC COUNTERFACTUAL APPELLATE BRANCH — NEVER
OCCURRED ON THE ACTUAL DOCKET — ALL FACTS AND
IDENTIFIERS ARE FICTIONAL

United States Court of Appeals for the Fourth Circuit

Piedmont Booksellers Guild v. City of Norvale

No. SYN-CA4-26-CV-4103-CF-NEVER-OCCURRED

Appellate Stay Grant

Entered February 6, 2026

The City of Norvale's motion for temporary relief is granted in part. The Court accepts the specific Rule 8 showing based on the January 30 recusal, incomplete district-court reassignment, documented attempts to obtain referral, and February 3 staffing decision. Those circumstances made initial district presentation impracticable when the City filed. The Piedmont Booksellers Guild's acknowledgment of the clerk communications is noted.

Under *Nken v. Holder*, 556 U.S. 418, 433–35 (2009), the City has shown enough likelihood of material appellate relief and unrecoverable administrative injury to justify a short, bounded stay. The January 23 command restrains an ordinance containing both disputed paid-speaker provisions and logistical requirements while preserving broad categories of neutral authority. The resulting uncertainty, together with the absence of an express Rule 65(c) determination, presents a substantial issue.

The stay is provisional and expresses no final view on preliminary-injunction entitlement. It will remain in effect only until the Court reviews the completed record and enters a further order. Norvale may not use this temporary relief to evaluate viewpoint, demand ideological detail, or impose a condition based on anticipated hostility to a lawful message. The safeguards and limited scope stated below are conditions of relief.

Terms of Temporary Relief

The January 23 injunction is stayed to the following extent. Norvale may use the event application's speaker name, general topic, presentation time, format, equipment, expected-attendance, site-plan, loading, traffic, and emergency-contact fields. A topic description such as “novelist reading and questions” is sufficient. Staff may compare this information with reservations and documented access needs.

The \$45 paid-speaker assessment remains suspended. Norvale shall not collect it, accrue it, condition a permit on its later payment, or seek it retroactively for conduct occurring while this order governs. The \$240 event charge also shall not be collected for the February 14 Guild fair pending further order. These limitations prevent the temporary stay from imposing an immediate economic condition on protected programming.

A speaker substitution retaining the same time, location, format, equipment, and reasonably expected attendance shall be approved within three business days unless the City identifies a materially different operational consequence in writing. No decision may consider viewpoint, literary merit, political affiliation, or audience disagreement. Any condition must identify a concrete crowd, traffic, emergency, sanitation, competing-use, site, or resource fact.

The City shall preserve all communications, application versions, staff notes, and decisions relating to the Guild. The Guild shall continue providing material logistical updates and complying with lawful site directions. Either party may seek immediate clarification if a specific condition threatens the February program. These terms temporarily organize conduct; they do not amend Ordinance N-2025-18 or resolve its validity.

Duration and Further Proceedings

The district record is expected to be certified on February 9. Within four hours after certification or notice that a successor district judge has been assigned, whichever occurs first, the City shall notify this Court and the Guild. The parties may file a joint status notice or separate notices limited to the effect of that development on continued interim relief.

This stay expires upon entry of a further panel order. The Court may dissolve, narrow, or continue it after reviewing the completed materials; no party should infer continuation from the present ruling. If record completion shows that direct neutral authority adequately addresses the immediate concerns or removes uncertainty about the January 23 command, the justification for provisional suspension may no longer exist.

The appeal remains interlocutory under 28 U.S.C. § 1292(a)(1). The district court retains authority over the unresolved complaint and may manage proceedings consistent with this temporary order and the notice of appeal. Nothing here determines permanent relief, damages, facial validity, an eventual bond, or the final construction of Rule 65(d).

The motion is granted only on the stated conditions and denied to the extent it requests broader restoration or collection of charges. The Clerk shall provide immediate electronic notice to counsel and transmit a copy to the district clerk. Entered at the direction of the panel on February 6, 2026.